

14. 9:00 AM CASE NUMBER: C25-01595
CASE NAME: PRODIGY MANAGEMENT, LLC VS. KHRISTIAN BUISON
***HEARING ON MOTION IN RE: APPLICATION FOR WRIT OF POSSESSION AND HEARING RE:**
KHRISTIAN JOY BUISON
FILED BY: PRODIGY MANAGEMENT, LLC
TENTATIVE RULING:

Parties to Appear

15. 9:00 AM CASE NUMBER: C25-01792
CASE NAME: MUNA RANTISI VS. KHALED ABUKESHEK
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ABUKESHEK, KHALED AHMAD
TENTATIVE RULING:

Before the Court is Defendant Khaled Ahmad Abukeshek's Demurrer to Plaintiffs' Complaint.

Defendant's unopposed Request for Judicial Notice is **GRANTED**. (Cal. Evid. Code § 452 (d).)

Defendant's demurrer is **SUSTAINED** as discussed below.

Factual Allegations and Procedural Background

This matter arises from an incident that occurred on December 2, 2022, wherein moving Defendant Khaled Ahmad Abukeshek ("Defendant") allegedly shot Khalid Haddad. Khalid Haddad suffered injuries to his head, hand, arm and leg from the gun shots. It is alleged that Khalid Haddad (Decedent) died on July 12, 2023, because of the gun shots.

Plaintiffs filed the Form Complaint in this matter on June 20, 2025. It includes three causes of action: (1) general negligence, (2) premises liability, and (3) intentional tort. Plaintiffs in this action include: (1) the Estate of Khalid Haddad; (2) Muna Rantisi, individually and as successor in interest of Khalid Haddad; (3) Victor George Haddad; (4) Razan Victor Haddad; and (5) Faisal Victor Haddad. All the individual Plaintiffs are immediate family members of the deceased: Muna Rantisi: mother; Victor George Haddad: father; Razan Victor Haddad: sister; and Faisal Victor Haddad: brother.

On November 12, 2024, Plaintiffs Estate of Khalid Haddad and Muna Rantisi, individually and as successor in interest of Khalid Haddad, filed a separate lawsuit against Moving Defendant Khaled Ahmad Abukeshek, Shaker Abukishk, and Violet Jew – all of which are Defendants in this action. That matter is also pending in Contra Costa Superior Court – case number C24-03021 (the "03021 Matter"), currently pending before Department 16. The 03021 Matter also pertains to the December 2, 2022, incident and asserts that same three causes of action. The factual allegations are essentially the same as those in the present action.

Defendant Khaled Ahmad Abukeshek demurs to the entire complaint on two grounds: (1) there is another action pending between the same parties on the same cause of action (Cal. Code Civ. Proc. § 430.10 (c)); and (2) the complaint fails to state facts sufficient to state a cause of action (Cal. Code Civ.

Proc. § 430.10 (e).)

Analysis

In their Opposition, Plaintiffs argue that Defendant's demurrer is improper because there is a "pending motion to consolidate and despite Plaintiffs' effort to comply with California's single-action rule for wrongful death." (Opp. at 1:25-2:2.) The single-action rule has been explained as follows:

"Under California law, either the heirs or the personal representative on behalf of the heirs may bring a single joint indivisible action for wrongful death. This means that **all heirs should join in a single action and there cannot be a series of suits by heirs** against the tortfeasor for their individual damages. Any recovery for wrongful death is in the form of a lump sum, i.e., a single verdict is rendered for all recoverable damages. The respective rights of the heirs in any award are determined by the court based on the proportion that the heir's personal damage bears to the damage suffered by the others." (*McDaniel v. Asuncion* (2013) 214 Cal.App.4th 1201, 1203 emphasis added.)

Plaintiffs do not explain how they attempted to abide by this rule by filing a second near-identical lawsuit instead of seeking leave to amend in the 03021 Matter. This second suit constitutes a "series of suits by heirs against tortfeasor for their individual damages."

Plaintiffs argue that they already filed a motion for consolidation which will "eliminate any duplication of actions, parties, or claims," and as such the instant demurrer is "premature and unnecessary," without citing any law to support such a position. The Court notes that Defendant filed this demurrer on September 9, 2025. Plaintiffs' motion to consolidate filed in the 03021 Matter was not filed until December 15, 2025. This was over three months after the demurrer was filed and almost six months after this case was filed. There is no explanation for this delay.

The Court also notes that when a party files a motion to consolidate a notice of motion to consolidate "must" be "filed in each case sought to be consolidated." (Cal. R. Ct. 3.350 (a)(C). A review of the docket in this matter fails to reveal a notice of motion to consolidate filed in this matter. As such, it is unclear that a properly filed motion to consolidate is actually pending.

Plaintiffs had the option – and arguably the duty – to seek leave to amend in the 03021 Matter if they believed that additional parties (i.e. heirs) were necessary to that suit. "Because there is only a single action for wrongful death, an heir bringing the action **should join all known heirs**. If an heir refuses to join as a plaintiff, he or she may be named as a defendant, so all heirs are before the court in the same action." (*Adams v. Superior Court* (2011) 196 Cal.App.4th 71, 77 quoting *Smith v. Premier Alliance Ins. Co.* (1995) 41 Cal.App.4th 691, 696-97.)

The filing of this separate action is contrary to the law and only creates extra work for the parties as well as the Court. Plaintiffs have provided no legal authority to support maintaining a separate action.

Conclusion

Defendant's demurrer is **SUSTAINED**.

16. 9:00 AM CASE NUMBER: C25-01992
CASE NAME: JUSTIN WANG VS. TESLA, INC
HEARING IN RE: APPLICATION OF JAMES CULLEN EVANS TO APPEAR PRO HAC VICE ON BEHALF OF DEFENDANTS
FILED BY: TESLA, INC
TENTATIVE RULING:

Parties to Appear

17. 9:00 AM CASE NUMBER: C25-02141
CASE NAME: RASSOUL MALBOUBI VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: CITY OF RICHMOND
TENTATIVE RULING:

Before the Court is a demurrer by the City of Richmond and Hector Lopez to the complaint. For the reasons set forth, the Court rules as follows: (a) the demurrer to the Complaint in its entirety is **OVERRULED**; and (b) the demurrer to the first through ninth causes of action is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

This action involves a dispute by plaintiff Rassoul Malboubi over decisions by the City of Richmond and Hector Lopez, at the time one of the City's senior planners in the planning department, concerning a duplex owned by plaintiff Mr. Malboubi located on 24th Street in the City of Richmond. (Compl. ¶¶ 2, 3.) (The City represents Mr. Lopez retired as a City planner on August 16, 2025. (MPA ISO Dem. p. 7, fn. 1.))

Mr. Malboubi informed Mr. Lopez he wanted to subdivide the property into "two separate legal units." (Compl. ¶ 3.) Plaintiff alleges he obtained a survey and submitted an application and other paperwork to the City in April 2024. (Compl. ¶ 7.) Mr. Lopez informed him that for a lot split, because all six utility meters were located on one of the proposed parcels, three of the meters would have to be moved to the other proposed parcel so that each of the two properties had its own set of utility boxes. Mr. Malboubi alleges he informed Mr. Lopez by email on May 23, 2024 he wanted instead to proceed with the project as a condominium or townhouse conversion. (Compl. ¶¶ 9-11.)

Plaintiff describes a series of communications with Mr. Lopez, and Plaintiff's submission of proposed deeds, utility easements, and other documents requested by Mr. Lopez. He attaches an email from Mr. Lopez dated November 13, 2024 in which Mr. Lopez stated that, "If no objections are received, the City will issue an approval letter and forward the documents to the County for recordation." (Compl. ¶¶ 12-25.) He alleges a series of additional communications with Mr. Lopez after November 14, 2024. (Compl. ¶¶ 27-34.)

Plaintiff alleges he complied with Mr. Lopez's requests and expected after January 2025 the project would be approved. (Compl. ¶ 35.) He alleges on March 6, 2025, Mr. Lopez sent an email stating that